City of Windsor Heights Regular Business Meeting Minutes
Monday, September 21, 2026 - 6:00 PM
WINDSOR HEIGHTS COUNCIL CHAMBERS - 1133 66th ST

1. **Call to Order/Roll Call/Pledge of Allegiance**

   Mayor Mike Jones called the meeting to order at 6:02 PM. Members present: Susan Skeries, Joseph Jones, Lauren Campbell, Fletcher Barry, Threase Harms. Staff present: City Administrator Adam Plagge, City Clerk Adam Strait, Finance Director Rachelle Swisher, Fire Chief Jim Mease, Police Chief Pete Roth, Public Works Director Andy Larson, City Attorney Erin Clanton, City Engineer Justin Ernst, Deputy City Clerk Nate Leuthold

2. **Approval of the Agenda**

   Motion by Susan Skeries to APPROVE. Seconded by Joseph Jones. Motion passed 5-0.

3. **Public Hearing:**

   A. Public Hearing on the Intention to Issue Not to Exceed $8,500,000 Private College Revenue Bonds (Grand View University Project), Series 2026

      Motion by Joseph Jones to open the public hearing at 6:03 PM. Seconded by Susan Skeries. Motion passed 5-0. Rachelle Swisher presented. Swisher explained that the proposed revenue bond for Grand View University is a conduit bond, allowing the University to utilize the City's bonding authority without creating a financial obligation for the City. Adam Plagge noted the City is charging a $5,000 conduit fee plus associated expenses to recover legal costs and staff time. Similar conduit bonds have previously been issued for ChildServe and Salisbury House. Swisher also explained that Grand View approached Windsor Heights because conduit bonds must be issued by a governmental entity within the required geographic proximity to the project. No public comment was given. Motion by Susan Skeries to close the public hearing at 6:06 PM. Seconded by Joseph Jones. Motion passed 5-0.

      i Consideration of Resolution No. 2026-60 - A Resolution Authorizing The Issuance And Sale Of Private College Revenue Bonds (Grand View University Project), Series 2026 Of Windsor Heights, Iowa, In An Aggregate Principal Amount Not To Exceed $8,500,000; The Execution And Delivery Of A Loan Agreement With Grand View University And Bankers Trust Company.

         No further discussion held. Motion by Joseph Jones to APPROVE. Seconded by Susan Skeries. Motion passed 5-0.

4. **Public Forum:** This is time set aside for comments from the public on topics of City business other than those listed on the agenda. No action may be taken. Please come to the podium, state your name and address for the record and keep your comments to no more than 5 minutes.

   1. Norbert Kaut, 1148 63rd Street, representing Strong Towns Des Moines, requested that the City Council issue a proclamation recognizing October 1 through 8 as Week Without Driving. Count highlighted the City's progress in becoming more walkable and encouraged continued investment in pedestrian and bicycle infrastructure to improve health, safety, accessibility, and community connectivity. He invited Council members and residents to participate in Week Without Driving and attend an upcoming Strong Towns Des Moines discussion on walkability.
   2. Bob Bishop, 1128 64th Street, addressed Council regarding stormwater and flooding concerns, citing recent rainfall events and impacts to nearby properties. Bishop encouraged Council to prioritize the planned storm sewer project, consider future land uses during engineering, and complete the improvements by the end of 2027.
   3. Margaret Allen, 6420 Elmcrest Drive, representing Strong Towns Des Moines, spoke in support of Week Without Driving. Allen encouraged the City to promote the initiative

through social media and the City newsletter to increase awareness of transportation options and noted Windsor Heights' access to DART routes.

5. **Consent Agenda:** Any item on the Consent Agenda may be removed for separate consideration.

   Councilor Skeries asked whether the additional engineering costs for the 68th Street Construction Services Amendment were related to project issues. Administrator Plagge confirmed the costs were due to the project's extended timeline and additional observation needs and stated the City expects to assess liquidated damages. Motion by Susan Skeries to APPROVE. Seconded by Joseph Jones. Motion passed 5-0.

   A. Approve Minutes of the Regular Council Meeting on August 17, 2026

   B. Approve Financial Reports

   C. Approve Liquor License - Altus Brewing Company LLC (Reclaimed Rails) - 6900 School Street

   D. Approve Liquor License - Aldi 116 - 7100 University Ave

   E. Approve Liquor License - Puerto Rico Restaurant - 6611 University Ave Unit 101

   F. Approve Liquor & Tobacco Licenses Ownership Update - Caseys - 6961 University Ave

   G. Approve 73rd Street Phase 1 STP-U-8477(615)—70-77 Pay Request 23

   H. Approve 74th Street Reconstruction Project Pay Request 4

   I. Approve 68th Street Construction Services Amendment 2

   J. Approve Release of Request for Proposals for Demolition of 1122 65th Street

   K. Approve Resolution No. 2026-61 - A Resolution Setting the Time and Place to Conduct a Public Hearing to Consider the Conveyance of Easement on City Property

   L. Approve Submission of Bravo/ICON Public Art Grant Application with a City Match of Up to $15,000

   M. Approve University Ave. Corridor Signal Timing and Operations Studies

   N. Approve Resolution No. 2026-63 - A Resolution Approving an Agreement with Heather Hansen for the Installation of an Awning Mural at 6587 University Avenue

6. **Action Items:**

   A. Discussion of Urban Bow Hunt Ordinance

Administrator Plagge discussed potentially allowing urban bow hunting on City-owned property between Sherwood Forest and The Windsor Trail. Plagge explained that the property meets ordinance requirements and appears to be the best available location to expand the program, as there are currently no active properties participating in the hunt. Plagge noted that implementing the hunt would require establishing a process for selecting and approving hunters and determining how the adjacent informal trail would be managed during active hunting. Council expressed general support for continuing to explore the location but raised concerns regarding safety, trail access, notification to nearby residents and trail users, signage, barricades, and staff responsibilities. Council discussed limiting trail closures to periods when hunting is actively occurring rather than closing the trail for the entire season. Staff will further develop the procedures and safety measures and bring a plan back to Council for consideration.

B. Consideration of Resolution No. 2026-62 A Resolution Approving an Independent Administrative Services Agreement with Hart Halsey LLC DBA Extra Duty Solutions

Police Chief Roth presented a proposed no-cost, month-to-month agreement with Extra Duty Solutions (EDS) to manage scheduling, billing, and payment processing for extra-duty police assignments at Walmart. Roth explained that the current process requires significant officer time to coordinate daily assignments and fill last-minute vacancies, including with outside agencies. Costs associated with EDS would be paid by Walmart, with no cost to the City. Staff indicated the Walmart assignments would serve as a trial, with the potential to expand EDS to other extra-duty assignments if successful. Councilor Harms raised concerns regarding the existing process, why the agreement was being entered into by the City rather than the police association, and whether the proposal had received sufficient committee review. City Attorney Clanton explained that she recommended the agreement be through the City to ensure appropriate liability and indemnification protections because officers use City-issued equipment and weapons. Harms stated she would have preferred the matter be reviewed by the Personnel and Finance Committee before Council consideration. Motion by Susan Skeries to APPROVE. Seconded by Joseph Jones.Roll call vote: Aye - Susan Skeries, Joseph Jones, Lauren Campbell, Fletcher Barry, Nay - Threase Harms. Motion Passed 4-1.

C. Discussion of Police Department Patrol Staffing

Police Chief Roth provided an update on the Police Department’s 12-officer patrol staffing trial, which has been in place since May. Roth reported that the model has maintained adequate coverage and responsiveness while reducing overtime by approximately 55 percent compared to the same period last year. The dedicated officer program at Walmart has also reduced on-duty calls at that location. Staff and the police union recommended continuing the trial through the end of 2026 to gather additional data. Council discussed concerns regarding maintaining coverage if multiple officers are unavailable due to vacancies, injuries, or extended leave. Roth noted that the current model has handled temporary absences successfully but acknowledged that losing multiple officers could create staffing challenges and potentially require supplemental services from another agency. Staff will continue monitoring calls for service, mutual aid, overtime, staffing levels, and officer feedback before providing a final recommendation. Council also discussed the status of the City’s MINE Task Force and SERT participation and requested continued review of the costs and services associated with the City’s mutual aid agreements and memberships. Roth stated that SERT would return to the Public Safety Committee before coming back to Council, along with information comparing the City’s memberships, 28E agreements, and other mutual aid services. MINE will return to the Personnel and Finance Committee for further discussion.

D. Consideration of Adopting Ad-Hoc Benefits Committee Recommendations, Updated Employee Handbook and Cell Phone Policy

City Administrator Plagge presented recommendations from the Ad Hoc Benefits Committee following its comprehensive review of employee benefits. Proposed changes included modifications to deferred compensation and healthcare opt-out payments, elimination of executive leave, reduced PTO payout frequency and cell phone allowances, adjustments to

summer hours and tuition reimbursement, and continued suspension of merit pay. No changes were recommended to holidays or parental and adoption leave. The recommendations were estimated to save approximately $61,000 to $62,000 annually for non-union employees. Councilor Harms discussed the committee's goal of reviewing the City's overall benefits package comprehensively, particularly as the City prepares for future financial impacts from changes to property tax laws. Harms stated that the review should balance employee recruitment and retention with costs to residents and suggested periodically reviewing benefits against those offered by other communities. She also identified holidays, parental and adoption leave, and the City's smoking and tobacco policy as areas she believed warranted future review. Deputy City Clerk Nate Leuthold addressed Council regarding the proposed changes, noting that the City's benefits package was a significant factor in his decision to accept employment with the City. Leuthold expressed understanding of changes that would produce financial savings but raised concerns about eliminating executive leave and shortening summer hours, particularly because those changes did not have identified direct budget savings. He encouraged Council to consider the potential effects on employee time off and burnout. Council further discussed the purpose of executive leave and its relationship to flex time. Staff clarified that flex time would remain available to salaried employees to account for work performed outside their normal schedules, while comp time applies to hourly employees. Staff also noted that executive leave is uncommon among comparable metro communities and explained that the proposed handbook changes would take effect January 1. Motion by Joseph Jones to APPROVE. Seconded by Susan Skeries.Roll call vote: Aye - Susan Skeries, Joseph Jones, Lauren Campbell, Fletcher Barry, Nay - Threase Harms. Motion Passed 4-1.

E. Consideration of Tobacco Retail Device Application - Super Quick Mart - 7690 Hickman Road

City Clerk Adam Strait presented the City's first tobacco retail device permit application for Super Quick Mart, 7690 Hickman Road. Strait explained that the permit is a newer requirement for retailers selling certain metal or glass smoking devices, requires an active tobacco permit, and includes additional requirements related to the display and sale of the devices. City Attorney Clanton explained that, unlike a tobacco permit, the City has discretion to approve or deny a tobacco retail device permit. She recommended that Council establish a consistent approach for reviewing future applications, which could include factors such as store location, placement of devices, and prior compliance history. Council expressed concerns regarding the applicant's recent tobacco compliance violation, previous permitting issues, and the lack of an established City policy for reviewing device permits. Council agreed that guidelines should be developed to ensure applications are considered consistently. The application was tabled and will be reviewed by the Public Safety Committee, which will develop proposed guidelines before the application returns to Council. Motion by Susan Skeries to TABLE. Seconded by Fletcher Barry. Motion passed 5-0.

F. Consideration of the Second Reading of Ordinance 26-02 - An Ordinance Amending Provisions Pertaining to Fiber Optic Cable License

City Administrator Plagge noted that no public comments have been received by staff and the ordinance remains unchanged since the first reading. Motion by Susan Skeries to APPROVE. Seconded by Joseph Jones. Motion passed 5-0.

G. Consideration of the First Reading of Ordinance 26-03 - An Ordinance Amending Provisions Pertaining to Bicycle Regulations

City Administrator Plagge presented the first reading of Ordinance 26-03 amending the City's bicycle and pedestrian conveyance regulations. The proposed ordinance includes a definition for high-speed pedestrian conveyances, prohibits certain high-speed devices, establishes a 20 mph speed limit on trails and sidewalks and a 15 mph limit in City parks, and includes additional regulations for bicycles, scooters, and other pedestrian conveyances. Council discussed enforcement of the proposed speed limits and a helmet requirement for riders under age 16. Council expressed differing views on whether helmets should be required or encouraged and discussed the difficulty of defining which devices should be subject to the requirement.

Council ultimately directed staff to retain a helmet requirement while refining the language to focus on higher-speed devices and avoid unintentionally including items such as tricycles and similar children's devices. Staff also recommended revising the required distance for following emergency vehicles from 200 feet to 500 feet. Staff will return for the second reading with revised helmet language and the 500-foot emergency vehicle provision. Motion by Susan Skeries to APPROVE. Seconded by Joseph Jones. Motion passed 5-0.

H. Discussion of City Administrator Evaluation

Councilor Harms presented a summary of the City Administrator's annual performance evaluation. Council's evaluations indicated that City Administrator Plagge is meeting the overall expectations of the position, recognizing his effective leadership, responsiveness, communication with Council and residents, and growth during his three years with the City. Council identified areas for continued development, including long-term financial planning, economic development, staff accountability, Council and public communication, professional development, and regional collaboration. Council emphasized the importance of multi-year financial forecasting as the City prepares for changing financial constraints and encouraged continued development of an economic development strategy and opportunities for regional partnerships. Motion by Threase Harms for a 1.5 percent salary increase for Plagge. Seconded by Susan Skeries. Motion passed 5-0.

7. **Reports:**

A. Mayor, Council Reports and Committee Updates, and Administration Reports

- Councilor Threase Harms reported that planning for Windsor Wonderland is well underway and thanked those involved for their additional efforts. She also reported on the recent MAC meeting, where much of the discussion focused on property taxes and how communities are managing the impacts of recent changes. Councilor Harms noted that she has also been involved in planning for Fall Festival. Following earlier discussion regarding MINE and CERT, she requested that information gathered as those items move through their respective committees be shared with the full Council so everyone has the same information moving forward.
- Councilor Lauren Campbell reported that she was unable to attend the recent Bravo meeting due to a work emergency. She noted that Fall Fest is next weekend and volunteers are still needed. Councilor Campbell also reported that an additional volunteer had contacted her and she would coordinate with Councilor Skeries regarding the volunteer.
- Councilor Fletcher Barry reported that he met with ICON Water Trails and City development staff in August to explore opportunities for local businesses to become involved with the new water trails site in Windsor Heights. He attended Wake Up in Windsor Heights at Bankers Trust and a recent Central Iowa Community Trust update session. Councilor Barry noted that he and staff will meet in October to further explore potential opportunities for the community. He also reported that he will attend the YMCA Impact Awards with Councilor Jones.
- Councilor Joseph Jones reported on the recent DART meeting, where FY26 performance was reviewed. DART achieved just under 85 percent on-time performance, with several other measures approaching established goals. State Fair ridership increased 8 percent and generated ridership equivalent to approximately one additional month of service. DART also received public input on potential improvements to State Fair Park and Ride service, particularly at Center Street. Councilor Jones also reported on the recent HOME Board meeting, which included discussion of a HUD funding opportunity with a September 30 deadline following recent court action. He noted that he will provide Council with a written update on the

funding opportunity.

- Councilor Susan Skeries reported that she has been focused on planning for Fall Fest and emphasized the continued need for volunteers. She also volunteered at the Beaverdale Fall Festival, where she recruited two additional volunteers and had the opportunity to hear River City Opry, which will perform at Windsor Heights Fall Fest.
- City Administrator Adam Plagge reported on the impacts of recent heavy rainfall, including reports of water in basements throughout Windsor Heights and the metro. He thanked Public Works and other City staff for responding to resident calls, providing information, and clearing storm sewer intakes. Plagge noted that the City's stormwater system continues to function where infrastructure is in place and thanked Public Works for its efforts to maintain the system and address potential issues.

B. Mayor's Report

C. Police Department Quarter 2 Report

D. Des Moines Public Library Update

8. **Adjourn**

Motion by Susan Skeries to adjourn at 8:11 PM. Seconded by Fletcher Barry. Motion Passed 5-0.

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Mike Jones, Mayor

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Adam Strait, City Clerk

STAFF REPORT
CITY COUNCIL
October 6, 2026

TO: CITY COUNCIL

FROM: Rachelle Swisher, Finance Director

SUBJECT: Approve Financial Reports

GENERAL INFORMATION

ATTACHMENTS

1. Claims Report

CITY OF WINDSOR HEIGHTS

*Check Detail Register©

Batch: PAY20260120.00,PAY20260120.01,PAY20260302.00,092226PAY,PRL-092526,PRL2-92326,092526PAY,092826PAY,100226PAY

Check #	Check Date	Vendor Name	Amount	Invoice	Comment
1110 CASH					
1377 e	09/25/26	**FEDERAL TAX DEPOSIT**			
G 001-2120		FEDERAL W/H PAYABLE	$13,267.57		
G 001-2121		FICA W/H PAYABLE	$18,854.82		
		Total	$32,122.39		
1378 e	09/25/26	**ISOLVED BENEFIT SERVICES**			
G 001-2131		FSA AND DEPENDENT C	$1,445.00		
		Total	$1,445.00		
1379 e	09/25/26	**STATE OF IOWA**			
G 001-2122		STATE W/H PAYABLE	$3,421.15		
		Total	$3,421.15		
1380 e	09/25/26	**ICMA RETIREMENT TRUST**			
G 001-2125		DEF COMP PAYABLE IC	$906.76		ICMA DEFERRED COMP
G 001-2125		DEF COMP PAYABLE IC	$1,066.70		ICMA - EMPLOYER
		Total	$1,973.46		
1381 e	09/25/26	**IPERS**			
G 001-2123		IPERS PAYABLE	$38,392.56		
		Total	$38,392.56		
1382 e	09/25/26	**DELTA DENTAL OF IOWA**			
G 001-2127		VISION/DENTAL	$2,464.30		
		Total	$2,464.30		
1383 e	09/25/26	**ASSURITY**			
G 001-2128		ASSURITY	$20.42		SWISHER, RACHELLE ASSURITY
G 001-2128		ASSURITY	$36.62		AHRENS, TYLER ASSURITY
G 001-2128		ASSURITY	$11.76		BROWN, CODY ASSURITY
G 001-2128		ASSURITY	$72.14		DAVISON, MARK ASSURITY
G 001-2128		ASSURITY	$90.20		IRLBECK, MICHAEL ASSURITY
G 001-2128		ASSURITY	$67.24		MEASE, JAMES ASSURITY
G 001-2128		ASSURITY	$37.50		NORRIS, CHAD ASSURITY
G 001-2128		ASSURITY	$39.40		PRICE, JEFF ASSURITY
G 001-2128		ASSURITY	$33.68		ROBERTS, JASON ASSURITY
G 001-2128		ASSURITY	$79.64		ROTH, PETE ASSURITY
G 001-2128		ASSURITY	$19.68		STRAIT, ADAM ASSURITY
		Total	$508.28		
1384 e	09/25/26	**EMPLOYEE BENEFIT SYSTEMS**			
G 001-2124		INSURANCE W/H PAYAB	$20,507.92		
		Total	$20,507.92		
1385 e	09/25/26	**STANDARD INSURANCE COMPANY**			
G 001-2134		SHORT TERM DISABILIT	($1,440.86)		
		Total	($1,440.86)		
1386 e	09/25/26	**FEDERAL TAX DEPOSIT**			
G 001-2120		FEDERAL W/H PAYABLE	$425.59		
G 001-2121		FICA W/H PAYABLE	$425.52		

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Batch: PAY20260120.00,PAY20260120.01,PAY20260302.00,092226PAY,PRL-092526,PRL2-92326,092526PAY,092826PAY,100226PAY

Check #	Check Date	Vendor Name	Amount	Invoice	Comment
		Total	$851.11		
1387 e	09/25/26	**STATE OF IOWA**			
G 001-2122		STATE W/H PAYABLE	$63.07		
		Total	$63.07		
1388 e	10/02/26	**CLEARFLY**			
E 001-615-6373		COMMUNICATIONS	$186.00	INV856445	PHONES
		Total	$186.00		
1389 e	10/02/26	**MIDAMERICAN ENERGY CO**			
E 001-480-6371		UTILITIES	$340.72	585693296	6900 SCHOOL ST, CEC, AEP
		Total	$340.72		
1390 e	10/02/26	**MIDAMERICAN ENERGY CO**			
E 110-230-6371		UTILITIES	$27.75	585632636	7001 UNIVERSITY AVE
		Total	$27.75		
1391 e	10/02/26	**MIDAMERICAN ENERGY CO**			
E 110-230-6371		UTILITIES	$30.23	585632645	6300 UNIVERSITY AVE
		Total	$30.23		
1392 e	10/02/26	**MIDAMERICAN ENERGY CO**			
E 110-210-6371		UTILITIES	$52.40	585649892	6800 SCHOOL ST, GAS
		Total	$52.40		
1393 e	10/02/26	**MIDAMERICAN ENERGY CO**			
E 110-230-6371		UTILITIES	$28.11	585655087	951 73RD ST TRAFFIC SIGNAL
		Total	$28.11		
1394 e	10/02/26	**MIDAMERICAN ENERGY CO**			
E 110-210-6371		UTILITIES	$318.08	585649981	6800 SCHOOL ST
		Total	$318.08		
1395 e	10/02/26	**MIDAMERICAN ENERGY CO**			
E 110-230-6371		UTILITIES	$27.00	585649519	7116 UNIVERSITY AVE, TRAFFIC LIGHT
		Total	$27.00		
1396 e	10/02/26	**MIDAMERICAN ENERGY CO**			
E 110-230-6371		UTILITIES	$27.60	585660654	1140 73RD ST
		Total	$27.60		
1397 e	10/02/26	**MIDAMERICAN ENERGY CO**			
E 001-150-6371		UTILITIES	$873.77	585665163	1133 66TH ST
		Total	$873.77		
1398 e	10/02/26	**MIDAMERICAN ENERGY CO**			
E 110-230-6371		UTILITIES	$24.37	585630708	6410 HICKMAN RD, TRAFFIC SIGNAL
		Total	$24.37		
1399 e	10/02/26	**MIDAMERICAN ENERGY CO**			
E 110-230-6371		UTILITIES	$10.00	585631045	1804 73RD ST, SPEED SIGN
		Total	$10.00		

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Batch: PAY20260120.00,PAY20260120.01,PAY20260302.00,092226PAY,PRL-092526,PRL2-92326,092526PAY,092826PAY,100226PAY

Check #	Check Date	Vendor Name	Amount	Invoice	Comment
1400 e	10/02/26	**MIDAMERICAN ENERGY CO**			
E 110-230-6371		UTILITIES	$75.09	585632067	6440 HICKMAN RD, STREET LIGHT
		Total	$75.09		
1401 e	10/02/26	**MIDAMERICAN ENERGY CO**			
E 001-480-6371		UTILITIES	$101.26	585633182	6900 SCHOOL ST, STAGE
		Total	$101.26		
1402 e	10/02/26	**MIDAMERICAN ENERGY CO**			
E 110-230-6371		UTILITIES	$49.29	585633737	1145 73RD ST, LIGHT
		Total	$49.29		
1403 e	10/02/26	**MIDAMERICAN ENERGY CO**			
E 110-230-6371		UTILITIES	$29.10	585640132	2227 63RD ST, TRAFFIC SIGNAL
		Total	$29.10		
1404 e	10/02/26	**MIDAMERICAN ENERGY CO**			
E 001-480-6371		UTILITIES	$24.82	585650063	6900 SCHOOL ST
		Total	$24.82		
1405 e	10/02/26	**MIDAMERICAN ENERGY CO**			
E 110-230-6371		UTILITIES	$132.53	585656173	6739 UNIVERSITY AVE LIGHT
		Total	$132.53		
1406 e	10/02/26	**MIDAMERICAN ENERGY CO**			
E 110-230-6371		UTILITIES	$14.82	585659753	1601 73RD ST, PED XING
		Total	$14.82		
1407 e	10/02/26	**MIDAMERICAN ENERGY CO**			
E 110-230-6371		UTILITIES	$28.57	585660290	7290 UNIVERSITY AVE
		Total	$28.57		
1408 e	10/02/26	**MIDAMERICAN ENERGY CO**			
E 110-230-6371		UTILITIES	$170.65	585662246	6540 UNIVERSITY AVE, STREET LIGHT
		Total	$170.65		
1409 e	10/02/26	**MIDAMERICAN ENERGY CO**			
E 001-620-6371		UTILITIES	$205.75	585665529	1145 66TH ST
		Total	$205.75		
1410 e	10/02/26	**MIDAMERICAN ENERGY CO**			
E 110-230-6371		UTILITIES	$3,217.38	585782606	STREET LIGHTING
		Total	$3,217.38		
1411 e	10/02/26	**VERIZON WIRELESS**			
E 001-110-6373		COMMUNICATIONS	$40.01		CELL PHONE/SERVICE
E 001-160-6373		COMMUNICATIONS	$78.52		CELL PHONE/SERVICE
E 001-110-6373		COMMUNICATIONS	$38.48		CELL PHONE/SERVICE
E 001-480-6373		COMMUNICATIONS	$24.39		CELL PHONE/SERVICE
E 110-210-6373		COMMUNICATIONS	$60.08		CELL PHONE/SERVICE
E 110-210-6373		COMMUNICATIONS	$76.94		CELL PHONE/SERVICE
E 110-210-6373		COMMUNICATIONS	$60.06		CELL PHONE/SERVICE
		Total	$378.48		

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Batch: PAY20260120.00,PAY20260120.01,PAY20260302.00,092226PAY,PRL-092526,PRL2-92326,092526PAY,092826PAY,100226PAY

Check #	Check Date	Vendor Name	Amount	Invoice	Comment
60781	09/22/26	**ABSOLUTE CONCRETE CONSTRUCTION**			
E 322-210-6761		CAP OUTLAY	$453,927.61		73RD ST PHASE 1 PAY REQUEST #23
		Total	$453,927.61		
60782	09/22/26	**MPS ENGINEERS DBA KINSTON SERVICES**			
E 328-210-6761		CAP OUTLAY	$320,465.09		74TH ST PAY REQUEST #4
		Total	$320,465.09		
60783	09/25/26	**AIRGAS**			
E 001-160-6498		MEDICAL SUPPLIES	$1.86	5526786625	OXYGEN
		Total	$1.86		
60784	09/25/26	**AMAZON CAPITAL SERVICES**			
E 110-210-6507		OPERATING SUPPLIES	$16.99	1MGT-VFV6-	SUPPLIES
E 001-150-6310		BUILDING REPAIR	$90.97	1NWG-FCT4-	PSB AMERICAN FLAGS
E 110-210-6507		OPERATING SUPPLIES	$38.99	1WYM-3Y96-	SUPPLIES
		Total	$146.95		
60785	09/25/26	**BITUMINOUS MATERIALS**			
E 110-210-6417		STREET MAINTENANCE	$300.00	2213426218	SUPPLIES
		Total	$300.00		
60786	09/25/26	**CAPITAL SANITARY SUPPLY**			
E 001-480-6507		OPERATING SUPPLIES	$429.36	C432366	CEC SUPPLIES
		Total	$429.36		
60787	09/25/26	**CE PRINT + PROMO**			
E 001-620-6374		NEWSLETTERS	$1,721.00	50067	SEPTEMBER NEWSLETTER
		Total	$1,721.00		
60788	09/25/26	**CITY OF WEST DES MOINES**			
E 001-160-6413		CONTRIBUTIONS & PAY	$120.00	EM2027-000	FIELD OPS LICENSE
E 001-110-6507		OPERATING SUPPLIES	$360.00	EM2027-000	FIELD OP LICENSES
		Total	$480.00		
60789	09/25/26	**CLIVE POWER EQUIP.**			
E 001-430-6332		REPAIR - VEHICLES & E	$5.15	30822	EQUIP REPAIR
		Total	$5.15		
60790	09/25/26	**CONCRETE SUPPLY INC.**			
E 110-210-6417		STREET MAINTENANCE	$1,995.00	833438	STREET MAINTENANCE
E 110-210-6417		STREET MAINTENANCE	$1,995.00	833837	STREET MAINTENANCE
		Total	$3,990.00		
60791	09/25/26	**CORELL RECYCLING**			
E 110-210-6417		STREET MAINTENANCE	$30.00		ASPHALT DISPOSAL
		Total	$30.00		
60792	09/25/26	**FAST SIGNS**			
E 001-150-6180		ALLOWANCES	$38.04	42-151036	NAME TAGS
		Total	$38.04		
60793	09/25/26	**GALLS LLC**			

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Batch: PAY20260120.00,PAY20260120.01,PAY20260302.00,092226PAY,PRL-092526,PRL2-92326,092526PAY,092826PAY,100226PAY

Check #	Check Date	Vendor Name	Amount	Invoice	Comment
E 001-110-6180		ALLOWANCES	$299.10	036297509	BROWN CLOTHING ALLOWANCE
		Total	$299.10		
60794	09/25/26	**GRAINGER**			
E 110-210-6332		REPAIR - VEHICLES & E	$22.96	9076900712	EQUIP REPAIR
		Total	$22.96		
60795	09/25/26	**GRIMES ASPHALT & PAVING**			
E 110-210-6417		STREET MAINTENANCE	$91.50	30156	ASPHALT
		Total	$91.50		
60796	09/25/26	**HANSEN, HEATHER**			
E 336-460-6490		OTHER PROF SERVICES	$22,500.00	0012	6587 MURAL PAYMENT 2 & AWNING PAYMENT 1
		Total	$22,500.00		
60797	09/25/26	**HOTSY CLEANING SYSTEMS**			
E 110-250-6507		OPERATING SUPPLIES	$380.40	PSI-3266805	SUPPLIES
		Total	$380.40		
60798	09/25/26	**INTERSTATE ALL BATTERY**			
E 110-210-6507		OPERATING SUPPLIES	$3.06	19246020672	SUPPLIES
		Total	$3.06		
60799	09/25/26	**JOHN'S TREE SERVICE, INC**			
E 110-299-6490		OTHER PROF SERVICES	$1,200.00	12336	TREE TRIMMING
		Total	$1,200.00		
60800	09/25/26	**KING'S MATERIAL, INC**			
E 001-430-6511		BLDG & GROUNDS OPE	$269.14	KMI8285072	PARK MULCH
		Total	$269.14		
60801	09/25/26	**LOUNSBURY LANDSCAPING**			
E 110-210-6417		STREET MAINTENANCE	$1,047.24	10252	BULK MATERIAL
		Total	$1,047.24		
60802	09/25/26	**MENARDS**			
E 001-150-6311		PSB GARAGE	$27.51	37198	PUBLIC SAFETY REPAIR
E 110-210-6507		OPERATING SUPPLIES	$324.07	37198	SUPPLIES
E 001-480-6511		BLDG & GROUNDS OPE	$49.53	38252	CEC BUILDING REPAIR
		Total	$401.11		
60803	09/25/26	**NAPA AUTO PARTS**			
E 110-210-6504		MINOR EQUIPMENT	$20.53	690017	SUPPLIES
		Total	$20.53		
60804	09/25/26	**PORTER DO-IT BEST HARDWARE**			
E 001-430-6332		REPAIR - VEHICLES & E	$15.49	558876	EQUIP REPAIR
		Total	$15.49		
60805	09/25/26	**PREMIER AUTOMOTIVE**			
E 110-210-6332		REPAIR - VEHICLES & E	$46.96	9077885	EQUIP REPAIR
E 110-210-6332		REPAIR - VEHICLES & E	$107.79	9078112	EQUIP REPAIR
E 110-210-6332		REPAIR - VEHICLES & E	$85.48	9078117	EQUIP REPAIR

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Batch: PAY20260120.00,PAY20260120.01,PAY20260302.00,092226PAY,PRL-092526,PRL2-92326,092526PAY,092826PAY,100226PAY

Check #	Check Date	Vendor Name	Amount	Invoice	Comment
E 001-110-6332		REPAIR - VEHICLES & E	$90.42	9078274	CAR 25 NEW HOOD
		Total	$330.65		
60806	09/25/26	**PYE BARKER FIRE & SAFETY**			
E 110-210-6310		BUILDING REPAIR	$325.50	IV01334517	PW FIRE EXT INSPECTION
		Total	$325.50		
60807	09/25/26	**ROYAL RIDES LLC**			
E 001-470-6497		FALL FESTIVAL	$966.72	24490	FALL FESTIVAL SHUTTLE
		Total	$966.72		
60808	09/25/26	**SAM'S CLUB DIRECT**			
E 001-150-6507		OPERATING SUPPLIES	$53.31		HOUSEKEEPING SUPPLIES
		Total	$53.31		
60809	09/25/26	**SITEONE LANDSCAPE SUPPLY**			
E 001-430-6507		OPERATING SUPPLIES	$191.01	170483030-0	SUPPLIES
		Total	$191.01		
60810	09/25/26	**SPECTRUM PAINT**			
E 110-210-6417		STREET MAINTENANCE	$195.20	123009022	TRAFFIC PAINT
E 110-210-6507		OPERATING SUPPLIES	$26.80	123009022	SUPPLIES
E 110-210-6504		MINOR EQUIPMENT	$496.80	123009022	MINOR EQUIP
		Total	$718.80		
60811	09/25/26	**THE SHREDDER**			
E 001-110-6507		OPERATING SUPPLIES	$54.00	359290	DOC SHREDDING SERVICES
		Total	$54.00		
60812	09/25/26	**VAN WALL EQUIPMENT**			
E 001-430-6332		REPAIR - VEHICLES & E	$156.49	7007661	EQUIP REPAIR
E 001-430-6332		REPAIR - VEHICLES & E	$7.52	7015045	EQUIP REPAIR
E 001-430-6332		REPAIR - VEHICLES & E	$276.12	7016028	EQUIP REPAIR
		Total	$440.13		
60813	09/25/26	**WEST DES MOINES TRUE VALUE**			
E 110-210-6507		OPERATING SUPPLIES	$8.09		SUPPLIES
E 110-210-6504		MINOR EQUIPMENT	$165.58		MINOR EQUIP
E 110-210-6504		MINOR EQUIPMENT	$65.68		MINOR EQUIP
E 110-210-6332		REPAIR - VEHICLES & E	$7.64		EQUIP REPAIR
E 110-210-6504		MINOR EQUIPMENT	$49.49		MINOR EQUIP
E 110-210-6507		OPERATING SUPPLIES	$30.87		SUPPLIES
E 110-210-6507		OPERATING SUPPLIES	$1.84		SUPPLIES
		Total	$329.19		
60814	09/25/26	**WILSON-BOLTON**			
E 350-480-6727		OTHER CAPITAL EQUIP	$4,482.25	INV0497414	CEC ICE MACHINE
		Total	$4,482.25		
60815	09/25/26	**ZIMCO SUPPLY CO**			
E 001-430-6511		BLDG & GROUNDS OPE	$235.00	INV-14457	SUPPLIES
		Total	$235.00		

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Batch: PAY20260120.00,PAY20260120.01,PAY20260302.00,092226PAY,PRL-092526,PRL2-92326,092526PAY,092826PAY,100226PAY

Check #	Check Date	Vendor Name	Amount	Invoice	Comment
60816	09/28/26	**CERDA, ELIANE**			
E 001-470-6497		FALL FESTIVAL	$512.50		FACE PAINTING DEPOSIT
		Total	$512.50		
60817	09/25/26	**MANHATTANLIFE**			
G 001-2132		MANHATTAN LIFE	$62.50		DAVISON, MARK
G 001-2132		MANHATTAN LIFE	$6.76		JONES, BRIAN
G 001-2132		MANHATTAN LIFE	$44.84		MEASE, JAMES
G 001-2132		MANHATTAN LIFE	$13.26		PRICE, JEFF
G 001-2132		MANHATTAN LIFE	$43.20		ROBERTS, JASON
G 001-2132		MANHATTAN LIFE	$22.26		ROTH, PETE
G 001-2132		MANHATTAN LIFE	$20.00		STAPLETON, BRIAN
		Total	$212.82		
60818	10/02/26	**AMAZON CAPITAL SERVICES**			
E 001-150-6407		PROF FEES/ENGINEERI	$11.99		RENTAL INSP. BOX KEY
E 001-470-6497		FALL FESTIVAL	$198.36	17YV-X4WH-	SILENT DISCO SUPPLIES
E 001-110-6502		PROMO/COMMUNITY RE	$198.03	1JY7-Q766-H	CANDY FOR UPCOMING EVENTS
E 001-620-6506		OFFICE SUPPLIES	$70.72	1QF9-R797-7	SUPPLIES
E 001-470-6497		FALL FESTIVAL	$62.44	1YFG-LLWD-	FALL FEST CANDY
		Total	$541.54		
60819	10/02/26	**BULLZEYE, INC**			
E 001-480-6511		BLDG & GROUNDS OPE	$1,640.00	11045	CEC SEPTEMBER CLEANING
		Total	$1,640.00		
60820	10/02/26	**CAMPBELL, LAUREN**			
E 001-470-6497		FALL FESTIVAL	$60.00		REIMBURSEMENT - WHAMM TIMER
		Total	$60.00		
60821	10/02/26	**CATCH DES MOINES**			
E 001-460-6421		CULT SVCS - CONVENTI	$139.71	25456	SEPTEMBER 2026 HOTEL/MOTEL
		Total	$139.71		
60822	10/02/26	**CERDA, ELIANE**			
E 001-470-6497		FALL FESTIVAL	$212.50		FACE PAINTING PAYMENT 2
		Total	$212.50		
60823	10/02/26	**COE, FELICIA**			
E 001-470-6497		FALL FESTIVAL	$500.00		FALL FEST PERFORMER
		Total	$500.00		
60824	10/02/26	**CRYSTAL CLEAR WATER CO.**			
E 001-620-6506		OFFICE SUPPLIES	$21.98	442067	SUPPLIES
		Total	$21.98		
60825	10/02/26	**DSM INFLATABLES**			
E 001-470-6497		FALL FESTIVAL	$1,650.00	000076	FALL FEST INFLATABLES
		Total	$1,650.00		
60826	10/02/26	**EIDE BAILLY**			
E 001-620-6401		AUDITS	$20,000.00	EI02126747	AUDIT SERVICES

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Batch: PAY20260120.00,PAY20260120.01,PAY20260302.00,092226PAY,PRL-092526,PRL2-92326,092526PAY,092826PAY,100226PAY

Check #	Check Date	Vendor Name	Amount	Invoice	Comment
		Total	$20,000.00		
60827	10/02/26	**EILEENS COOKIES**			
E 001-470-6496		MOVIES IN THE PARK	$162.50	1311	MOVIES IN THE PARK
		Total	$162.50		
60828	10/02/26	**IA COMM. ASSURANCE POOL**			
E 001-620-6408		GENERAL INSURANCE	$1,029.00	23986	LIABILITY INSURANCE
		Total	$1,029.00		
60829	10/02/26	**IMWCA**			
E 112-150-6160		WORKER'S COMP	$2,981.97	INV99873	
E 112-210-6160		WORKER'S COMP	$701.64	INV99873	
E 112-110-6160		WORKER'S COMP	$2,104.92	INV99873	
E 112-620-6160		WORKER'S COMP	$2.92	INV99873	
E 740-865-6160		WORKER'S COMP	$55.55	INV99873	
		Total	$5,847.00		
60830	10/02/26	**INDEPENDENT PUBLIC ADVISO**			
E 001-620-6490		OTHER PROF SERVICES	$2,250.00	WIN2026-2	QTRLY
		Total	$2,250.00		
60831	10/02/26	**INTERSTATE ALL BATTERY**			
E 001-110-6506		OFFICE SUPPLIES	$21.54	19246020673	APC BATTERY BACKUP
		Total	$21.54		
60832	10/02/26	**IOWA SCOTTISH PIPES AND D**			
E 001-470-6497		FALL FESTIVAL	$500.00		FALL FEST PERFORMER
		Total	$500.00		
60833	10/02/26	**IOWA SOLUTIONS INC**			
E 001-615-6419		TECHNOLOGY SERVICE	$4,038.00	102621	IT SERVICES
E 001-615-6419		TECHNOLOGY SERVICE	$2,185.90	102918	IT SERVICES
		Total	$6,223.90		
60834	10/02/26	**J2 AUDIO VIDEO & LIGHTING**			
E 001-480-6310		BUILDING REPAIR	$1,218.88		AV SYSTEM REPAIR
		Total	$1,218.88		
60835	10/02/26	**LIZ LIDGETT GALLERY & DESIGN**			
E 336-460-6490		OTHER PROF SERVICES	$1,000.00	1520	MURAL PROJECT
		Total	$1,000.00		
60836	10/02/26	**METRO WASTE AUTHORITY**			
E 670-840-6490		OTHER PROF SERVICES	$9,822.90	70033926	CURB IT FEES
E 670-840-6413		CONTRIBUTIONS & PAY	$23,170.68	70033927	GARBAGE FEES
		Total	$32,993.58		
60837	10/02/26	**MID-IOWA PLANNING ALLIANCE**			
E 001-530-6413		CONTRIBUTIONS & PAY	$37,000.00	1638	PROGRAM MATCH FY 27 & 28
		Total	$37,000.00		
60838	10/02/26	**PREMIER AUTOMOTIVE**			
E 001-110-6332		REPAIR - VEHICLES & E	$2,716.21	9078331	CAR 26 REPAIR

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Batch: PAY20260120.00,PAY20260120.01,PAY20260302.00,092226PAY,PRL-092526,PRL2-92326,092526PAY,092826PAY,100226PAY

Check #	Check Date	Vendor Name		Amount	Invoice	Comment
			Total	$2,716.21		
60839	10/02/26	**RIVER CITY OPRY**				
E 001-470-6497		FALL FESTIVAL		$1,200.00		FALL FEST BAND
			Total	$1,200.00		
60840	10/02/26	**SAFE BUILDING COMPLIANCE**				
E 001-170-6407		PROF FEES/ENGINEERI		$8,029.03	04092634	BUILDING INSPECTIONS
			Total	$8,029.03		
60841	10/02/26	**UNITYPOINT HEALTH**				
E 112-210-6131		PHYSICALS		$171.00	297734	PHYSICAL
E 112-210-6131		PHYSICALS		$127.00	9210IN3816	ANNUAL DOT CONSORTIUM FEE
			Total	$298.00		
60842	10/02/26	**VAN HAECKE, KIM**				
E 001-470-6497		FALL FESTIVAL		$500.00	10032026	FALL FEST TRAIN
			Total	$500.00		
			1110	$1,049,074.99		

Fund Summary

1110 CASH	
001 GENERAL	$194,021.95
110 ROAD USE TAX	$13,539.51
112 EMPLOYEE BENEFITS	$6,089.45
322 73RD STREET	$453,927.61
328 74TH STREET	$320,465.09
336 MURAL PROJ COLBY BLDG	$23,500.00
350 EQUIPMENT REVOLVING FUND	$4,482.25
670 GARBAGE/RECYCLING	$32,993.58
740 STORM WATER	$55.55
	$1,049,074.99

STAFF REPORT
CITY COUNCIL
October 6, 2026

TO: CITY COUNCIL

FROM: Nate Leuthold, Deputy City Clerk

SUBJECT: Approve Resolution No. 2026-65 - A Resolution Waiving CEC Fees for the Strong Roots Christian School on October 28, 2026

GENERAL INFORMATION

Strong Roots Christian School will be taking a field trip to the Des Moines Botanical Garden on October 28th. They will stop by Colby Park afterwards for a sack lunch. They hope to remain outside, but in the event of bad weather, they are requesting the 1/3 space of the CEC.

Their lunch is scheduled at around noon on October 28, 2026. The school is requesting the use of the 1/3 space from noon to 2 PM to have ample time to tidy up afterwards (should the need to use the space).

The non-profit rate for the 1/3 space in the CEC is $112 per hour on Wednesdays, for a total of $224.00. They have committed to returning the space to the state in which it was found (no cleaning fees required). They are requesting that all rental fees be waived. Given the minimal time, space, and general impact, staff recommends approval of the request.

ATTACHMENTS

1. Strong Roots Christian Letter
2. Resolution No. 2026-65 A Resolution Waiving CEC Fees for the Community Event Center by Strong Roots Christian School on October 28, 2026

STRONG ROOTS CHRISTIAN SCHOOL

Indianola, Iowa

September 28, 2026

Windsor Heights City Council
City of Windsor Heights
1145 66th Street, Suite 1
Windsor Heights, Iowa 50324

Re: Request to Use the Colby Park Community Event Center for a Student Lunch

Dear Windsor Heights City Council:

Strong Roots Christian School respectfully requests permission to use the Community Event Center at Colby Park for a brief lunch stop for our second-grade class on Wednesday, October 28, 2026.

We are a nonprofit Christian school located south of Des Moines, and our second-grade students will be in the Des Moines area that day for a field trip. We are simply looking for a safe, clean place where the students and their chaperones can sit down and eat their sack lunches.

Because we live in Iowa, late-October weather can be unpredictable. Having access to an indoor space would allow us to keep the students comfortable and keep our field-trip schedule on track if the day is cold, rainy, or otherwise unsuitable for eating outdoors.

We would only need the space for the lunch portion of our trip, and we would be happy to follow the City's facility guidelines and leave the room clean when we are finished. As a nonprofit school, we would also be grateful if the City Council would consider allowing us to use the space at no charge or waiving the rental fee for this brief educational field-trip stop.

Thank you for considering our request and for making community spaces like Colby Park available to families, schools, and organizations in central Iowa. We would greatly appreciate the opportunity to use the Community Event Center on October 28.

Sincerely,

Kristin Woolverton
Director of Operations
Strong Roots Christian School
On behalf of the Board of Trustees

RESOLUTION NO. 2026-65

A RESOLUTION WAIVING CEC FEES FOR THE STRONG ROOTS CHRISTIAN SCHOOL ON OCTOBER 28, 2026

WHEREAS, Strong Roots Christian School will be visiting Colby Park for a sack lunch following a field trip to the Des Moines Botanical Garden on October 28, 2026; and

WHEREAS, Strong Roots Christian School has requested the use of one-third of the Windsor Heights Community Event Center from noon to 2:00 p.m. in the event of inclement weather; and

WHEREAS, the applicable nonprofit rental rate for one-third of the Community Event Center is $112 per hour, for a total rental fee of $224; and

WHEREAS, Strong Roots Christian School has committed to returning the space to the condition in which it was found and has requested that the City waive all rental fees associated with the rental.

NOW, THEREFORE, BE IT RESOLVED BY THE CITY COUNCIL OF THE CITY OF WINDSOR HEIGHTS, IOWA:

That rental fees totaling $224 associated with the use of one-third of the Windsor Heights Community Event Center by Strong Roots Christian School from noon to 2:00 p.m. on October 28, 2026, are hereby waived.

Passed and approved this 6th day of October, 2026.

_____
Mike Jones, Mayor

_____
Adam Strait, City Clerk

STAFF REPORT
CITY COUNCIL
October 6, 2026

TO: CITY COUNCIL

FROM:

SUBJECT: Approve Resolution No. 2026-66 - A Resolution Approving City Administrator Compensation

GENERAL INFORMATION

ATTACHMENTS

1. Resolution No. 2026-66 - A Resolution Approving Administrator Compensation

RESOLUTION NO. 2026-66

A RESOLUTION APPROVING CITY ADMINISTRATOR COMPENSATION

WHEREAS, the City of Windsor Heights strives to be an Employer of Choice while providing the quality-of-life desired by the community through the provision of basic municipal services and infrastructure maintenance and care; and

WHEREAS, the City Council evaluated the performance of the City Administrator to reward performance and gave guidance for improvement.

WHEREAS, the City Council met in open session on September 21, 2026 to discuss the performance evaluation with the City Administrator, to give guidance for improvement for the coming year, and to discuss the City Administrator's compensation.

NOW, THEREFORE BE IT RESOLVED BY THE CITY COUNCIL OF WINDSOR HEIGHTS, IOWA THAT EFFECTIVE THE 21st DAY OF SEPTEMBER, 2026:

1. The City Administrator shall receive a 1.5% base wage increase.

Passed and Approved this 6th Day of October, 2026.

_____
Mike Jones, Mayor

Attest:

_____
Adam Strait, City Clerk

STAFF REPORT
CITY COUNCIL
October 6, 2026

TO: CITY COUNCIL

FROM: Adam Strait, City Clerk

SUBJECT: Approve Resolution No. 2026-67 - A Resolution Approving the Eighth Amended and Substituted Des Moines Area Metropolitan Planning Organization 28E Agreement

GENERAL INFORMATION

ATTACHMENTS

1. Letter to Members
2. MPO 28e - clean FINAL with RTC change
3. Blank Member Signature Page
4. Resolution No. 2026-67 - A Resolution Approving the Eighth Amended and Substituted Des Moines Area Metropolitan Planning Organization 28E Agreement

DES MOINES AREA MPO
METROPOLITAN PLANNING ORGANIZATION

420 Watson Powell Jr. Parkway, Suite 200
Des Moines, Iowa 50309
Phone: 515.334.0075
Email: info@dmampo.org
www.dmampo.org

September 30, 2026

Subject: Request to Approve the Eighth Amendment to the Des Moines Area MPO 28E Agreement

MPO Member Governments,

On September 17, 2026, the Des Moines Area Metropolitan Planning Organization (MPO) Policy Committee voted to approve the Eighth Amendment to its 28E Agreement. Pursuant to the requirements of the 28E Agreement, the amendments must also be approved by resolution of three-fourths (3/4) of the MPO's member governments before they become effective. As you consider this request to adopt the amended agreement, below is some additional information about this update, including a summary of the changes.

Background
The MPO's current 28E Agreement and Bylaws were last amended in 2018. Since then, the region has experienced population changes reflected in the 2020 Census, expansion of the MPO planning area, and continued organizational evolution.

During the MPO's 2025 Transportation Management Area Certification Review, the U.S. Department of Transportation recommended that the MPO update its 28E Agreement and Bylaws to reflect current census data and regional changes and to clarify roles and responsibilities of MPO committees.

Additionally, the MPO's 2024 Governance Insights review identified opportunities to clarify committee roles, strengthen alignment between written provisions and current practice, and enhance member engagement.

In March 2026, the Executive and Policy committees agreed on the need for a comprehensive review of the 28E and Bylaws. MPO Chair McCoy identified a steering committee of MPO representatives to help in this review process.

Process
A steering committee of five mayors from MPO member communities met several times between May and September to review proposed changes identified by MPO staff and legal counsel. The goal of the review was to ensure that both documents are clear, consistent, and accurately reflect the current organizational framework and operations. Potential changes identified ranged from relatively minor updates, including minor document cleanup to address obsolete language and to ensure alignment with current practices, to more major considerations that would change or clarify how the MPO operates.

Summary of Changes
The following summarizes changes made to the 28E Agreement:

- General update and clean-up throughout the document.
- Where the "Amended and Substituted Agreement" was referenced, the word "Eighth" replaced "Seventh" at the beginning of this phrase to indicate that this is the eighth revision to the original 28E agreement.

- General references to the MPO's policy board were updated to reflect the new name "Regional Transportation Council", which will replace the name "Policy Committee" as the MPO's decision-making body.
- Article III was updated to add a section clarifying the sources of population data, and timing of gathering population data, to be used for purposes of member assessments and voting.
- Weighted voting was removed as a method of voting on MPO matters.
- Detailed information about the makeup of the MPO committees, including the Transportation Technical Committee and the Executive Committee, were moved to the Bylaws.

I appreciate your timely attention to considering approval of these amendments to the 28E Agreement. Please feel free to reach out to me should you have any questions.

Sincerely,



Dylan Mullenix, AICP
Executive Director

Attachments:
Eighth Amended and Substituted 28E Agreement
Sample Resolution
Blank Member Signature Page

Des Moines Area Metropolitan Planning Organization

28E Agreement

Eighth Amended and Substituted

September 17, 2026

#3001959 v.2

Des Moines Area Metropolitan Planning Organization
28E Agreement
(Eighth Amended and Substituted)

The Des Moines Area Metropolitan Planning Organization (MPO) has prepared this document with partial funding from the United States Department of Transportation Federal Highway Administration and the Federal Transit Administration, and in part through local matching funds provided by the Des Moines Area MPO member governments. These contents are the responsibility of the Des Moines Area MPO. The United States Government and its agencies assume no liability for the contents of this report or for the use of its contents. This document was approved as of September 17, 2026. **The Des Moines Area MPO filed this 28E Agreement with the Iowa Secretary of State on _____, 2026**.

EIGHTH AMENDED AND SUBSTITUTED AGREEMENT ESTABLISHING THE DES MOINES AREA METROPOLITAN PLANNING ORGANIZATION

ARTICLE I - ESTABLISHMENT

The Des Moines Area Metropolitan Planning Organization (hereinafter referred to as "the MPO") is hereby established and created as a voluntary organization of certain county and city governments in the Metropolitan Planning Area, as set forth on Exhibit A, attached hereto and incorporated herein by this reference (hereinafter referred to as the "Metropolitan Planning Area"). The Metropolitan Planning Area includes the Des Moines Urban Area, or similar federally defined boundary, as established pursuant to applicable federal law and regulation. The Regional Transportation Council is the governing and final decision-making body of the MPO and serves as the MPO's policy board for purposes of 23. U.S.C. § 134 and applicable federal regulations. For the purposes of governance and decision-making under this Agreement, references to actions of the MPO shall mean actions of the Regional Transportation Council unless otherwise specified.

ARTICLE II - ORGANIZATION, PURPOSE AND POWERS

The MPO is organized as a separate legal entity pursuant to the provisions of Chapter 28E, Code of Iowa, 1997, as amended, with the powers and purposes to carry out transportation planning activities for the metropolitan area and other activities as described in this Agreement. The purpose of the Eighth Amended and Substituted Agreement is to make revisions to the previous Amended and Substituted Agreement that became effective on September 20, 2018, which replaced the previously existing agreement that became effective on August 11, 2010, which replaced the previously existing agreement that became effective on September 7, 2005, which replaced the previously existing agreement that became effective on August 20, 2001, which replaced the previously existing agreement that became effective on February 26, 1998, which replaced the previously existing agreement that became effective on May 19, 1993, which replaced the previously existing agreement that became effective on July 1, 1983 and to authorize the MPO to continue, pursuant hereto, to serve as a designated metropolitan planning organization, pursuant to Part 450 of Title 23 of the Code of Federal Regulations, and any amendment or successor section thereto; and to enable the MPO to carry out a transportation planning process as outlined therein.

The MPO is also authorized, upon designation by the State of Iowa, to review and comment on federal transportation, planning, or construction grants for which member governments have applied, and to determine their consistency with adopted area wide transportation plans. Except as otherwise provided in this Agreement, the MPO shall generally

act through its Regional Transportation Council, composed of representatives appointed by the member governments which shall exercise the powers and authority of the MPO.

The MPO is also authorized to carry out such other activities fostering collaboration between and among its member governments and other agencies, entities, and persons, public, quasi-public, and private, that involve information gathering and dissemination, planning, and consensus building deemed beneficial to the Metropolitan Planning Area. The MPO shall consider such activities in accordance with policies, criteria, or other decision-making frameworks adopted by the MPO Regional Transportation Council. This authority includes the power to enter into separate 28E Agreements and may involve acting as sponsor, lead agency, and/or fiscal agent for such endeavors.

ARTICLE III - MEMBERSHIP – POPULATION, VOTING, and REPRESENTATION

1. Population – For the purposes of this Agreement, "population" shall mean the most recent population estimate published by the U.S. Census Bureau or other official source as recognized by the MPO.

   Population figures shall be updated annually and shall be applied beginning July 1 of each year for all purposes under this Agreement, including but not limited to representation, voting, and assessments.

   The MPO shall maintain and publish the official population figures used for these purposes.

   County member population shall be based upon the portion of the of its unincorporated area within the Metropolitan Planning Area and the population of incorporated areas within the Metropolitan Planning Area that is not otherwise represented on the MPO.

2. Membership - Except as restricted by Section 5 of this Article, to become a voting member of the MPO, a city or county must: (a.) be located wholly or partially within the Metropolitan Planning Area; (b.) adopt this Eighth Amended and Substituted Agreement perpetuating the MPO by resolution of its governing body; and (c.) have a population of at least 3000 as defined in Article III, Section 1. All current voting MPO members as of the date of this 28E Agreement shall retain their voting membership in the MPO, regardless of whether or not they meet the requirements of Article III, Section 1. The foregoing to the contrary notwithstanding, the Des Moines Area Regional Transit Authority ("DART") shall be a member pursuant to the terms of this agreement. To retain membership in the MPO, each member government/agency must comply with all requirements of this Eighth Amended and Substituted Agreement.

   A city or county that is located wholly or partially within the Metropolitan Planning Area and not meeting the full requirements for membership, or a city or county not located

wholly or partially within the Metropolitan Planning Area yet within and adjacent county (Boone, Dallas, Jasper, Madison, Marrion, Story, or Warren counties), shall be eligible for an associate, non-voting membership after an affirmative vote of three-fourths of the current MPO members and the payment of dues, if any, established by the MPO.

Federal, state, and regional transportation agencies – including but not limited to the Iowa Department of Transportation, the Federal Highway Administration, the Federal Transit Administration, the Heart of Iowa Regional Transit Agency, the Central Iowa Regional Transportation Planning Alliance, and the Des Moines International Airport – and other public or quasi-public entities as determined by the MPO may serve as non-voting, advisory members of the MPO.

3. Representation

a. Each member government shall appoint its own representatives and may appoint alternate representatives in such a manner as determined by the member government. In case a member government has more than one representative, alternate representatives for that member government shall be entitled to vote in the absence of any representative of that member government. The DART representative to the MPO, and any alternate, will be someone other than the designated representative or alternate of any other member government.

b. Each member government shall be entitled to one representative on the MPO, plus one or more additional representatives based on the member government's population within the Metropolitan Planning Area as follows: One additional representative for each additional 50,000 in population as defined in Article III, Section 1. DART will be entitled to one representative or alternate and one vote at meetings of the Regional Transportation Council.

c. Each representative shall serve at the pleasure of the governing body by which that representative was approved.

d. Associate members and advisory members will be entitled to one non-voting, representative appointed by that entity and may appoint both primary and alternate representatives.

4. Voting

a. A quorum of the MPO shall be required for the conduct of its business. A quorum shall consist of a majority of the total number of persons who have been appointed as voting representatives of member governments.

b. In the ordinary conduct of the MPO's business, each representative will have one vote; and the majority vote of those representatives present and voting shall decide such matters.

5. Withdrawal and Readmission

a. Withdrawal - A member government may withdraw from membership on the MPO when its governing body requests such withdrawal by resolution, sent by certified mail, return receipt requested, to the MPO. Any such withdrawal shall become effective on the date which is the later of the following: (1) the date specified in the resolution, or (2) upon receipt of the resolution by the MPO. As provided in Article IV hereof, a member government shall be deemed to have withdrawn upon nonpayment of assessment within thirty (30) days after notice thereof is sent by certified mail, return receipt requested, to the Mayor or Chair of the Board of Supervisors and the City Clerk or County Auditor of the member government involved. In the event of withdrawal, such government shall not be relieved of its obligation to pay its share of the expenses of the MPO for the MPO fiscal year in which such withdrawal occurs.

b. Readmission - Any member government which has withdrawn or has been deemed to have withdrawn from the MPO may apply for readmission. The MPO shall establish a readmission fee for any applicant. The minimum readmission fee shall not be less than twenty-five (25) percent of the assessment for which the applicant would have been obligated had it been a member of the MPO during the prior MPO fiscal year. The maximum readmission fee shall not exceed two hundred (200) percent of the assessments for which the applicant would have been obligated during its non-membership period.

ARTICLE IV - BUDGET AND ASSESSMENT SCHEDULE

The MPO shall approve an annual budget and assessment schedule. The assessment for each member government shall be based on the ratio of its population within the Metropolitan Planning Area, as defined by Article III, Section 1. DART will not be charged any assessment.

All annual assessments are due and payable on July 1 of each year. Any member government which fails to pay any assessment, in full, within 30 days (or such other period of time as may be requested by the member government and approved by the MPO) after the due date shall become delinquent for non-payment of the assessment. No representatives of that member government shall thereafter be allowed to vote on any matter coming before the MPO until the delinquency is cured.

The MPO is authorized from time-to-time to approve amendments to the budget and corresponding special assessment schedule. Any such special assessment schedule shall be based on the same ratio among member governments as regular assessments. The resolution adopting any such amendments and special assessment schedule shall establish applicable payment deadlines and delinquency dates.

Written notice of delinquency shall be sent by certified mail, return receipt requested, to the Mayor or Chair of the Board of Supervisors and City Clerk or County Auditor of the member government involved. Upon non-payment of the full assessment within 30 days of receipt of the delinquency notice, that member government will be deemed to have withdrawn its membership on the MPO.

ARTICLE V - OPERATIONAL MATTERS

1. The MPO may adopt Bylaws and other rules or operational procedures, including provisions governing committees, which are not inconsistent with this Eighth Amended and Substituted Agreement.

2. In the conduct of its business, the MPO may cooperate with, contract with, and accept and expend funds from federal, state, and local agencies, public or semi-public entities, private individuals, profit and non-profit corporations, and any other legally recognized association or entity.

3. The MPO may appoint such advisors or create such technical or advisory committees as it deems desirable, as described in the Bylaws

4. The MPO shall approve such transportation plans, reports, or recommendations as are required by the federal and state governments as prerequisites for eligibility for federal or state transportation grants. In addition, the MPO shall prepare annually a Unified Planning Work Program (UPWP) that details planning activities to be conducted, the responsibilities for conducting those activities, and the proposed budget for those activities.

5. The MPO may make such arrangements as it deems necessary to secure administrative, staff and planning services, including contracting with any member government or any other public or private entity. Such services shall be included in the annual UPWP of the MPO.

ARTICLE VI - TERMINATION

The MPO may be terminated upon an affirmative vote of not less than three-fourths (3/4) of the representatives present at any regular meeting, or at a special meeting called for such